

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS
STATE OF COLORADO

Case No. 2017-2998

FINAL BOARD ORDER

IN THE MATTER OF THE DISCIPLINARY PROCEEDINGS REGARDING JULIE F.
UNGER, LPC, LICENSE NO. LPC-0003352

Respondent.

The State Board of Licensed Professional Counselor Examiners ("Board"), pursuant to and after formal proceedings before a duly qualified Administrative Law Judge ("ALJ") in accordance with the provisions of section 12-43-101, et al., of the Colorado Revised Statutes ("Act") and the Administrative Procedure Act ("APA"), and having reviewed the ALJ's Initial Decision Upon Default, hereby enters the following findings and order:

1. Respondent Julie F. Unger ("Respondent") was served with a Notice of Charges on October 29, 2018.
2. On or about December 11, 2018, the Board, by and through counsel, filed a Motion for Entry of Default with the Office of Administrative Courts. The ALJ issued an Entry of Default on January 9, 2019.
3. The ALJ's Entry of Default was mailed to Respondent by first class mail to the address of record on January 9, 2019, and to an additional address provided by the postal authorities on March 4, 2019.
4. The ALJ's Initial Decision Upon Default was rendered on May 9, 2019 and received by the Board on May 10, 2019. A copy of the Initial Decision Upon Default is attached to this Order and incorporated herein by reference.
5. The Initial Decision was served on Respondent and the Board's prosecuting attorney on May 16, 2019, via first-class mail and electronic mail.
6. Neither the Board's prosecuting attorney nor Respondent filed exceptions.
7. Upon review of the Initial Decision and Record, the Board hereby:
 - a. Accepts the Findings of Fact, as set forth in paragraphs one through seven of the attached Initial Decision, in their entirety.

- b. Adopts the Conclusions of Law, as set forth in paragraphs one through eight of the attached Initial Decision, in their entirety.
- c. Adopts the ALJ's recommended sanction of Revocation, as set forth in the final paragraph of the attached Initial Decision.

IT IS THEREFORE ORDERED by the BOARD that Respondent's license to practice professional counseling in the state of Colorado is hereby REVOKED from the effective date of this Final Board Order. The Final Board Order is hereby effective upon service to Respondent. Any party adversely affected or aggrieved by any agency action may commence an action for judicial review before the Court of Appeals within forty-nine (49) days after such action becomes effective. Reference sections 24-4-106(11) and 12-43-217, C.R.S.

SO ORDERED this 15th day of July, 2019.

FOR THE STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS



KAREN M. MCGOVERN
DEPUTY DIRECTOR
OFFICE OF LEGAL AFFAIRS

STATE OF COLORADO OFFICE OF ADMINISTRATIVE COURTS 1525 Sherman Street, 4th Floor, Denver, Colorado 80203	▲ COURT USE ONLY ▲
STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS, Petitioner, vs. JULIE UNGER, License No. LPC 3352, Respondent.	
INITIAL DECISION UPON DEFAULT	

This case is a disciplinary proceeding before the State Board of Licensed Professional Counselor Examiners ("the Board") involving the license to practice as a licensed professional counselor ("LPC") of Julie Unger ("Respondent"). The Board was represented by Senior Assistant Attorney General Jody Haskins. Respondent did not appear in this proceeding. Based upon Respondent's failure to file a timely Answer to the Board's Notice of Charges, an Entry of Default was issued on January 9, 2019. The Entry of Default was also mailed to Respondent at an additional address on March 4, 2019. Respondent then had ten days to show good cause why the Entry of Default should be set aside. Section 24-4-105(2)(b), C.R.S. No motion to set aside the Entry of Default was filed and this matter is ready for issuance of an Initial Decision Upon Default.

FINDINGS OF FACT

1. The last address furnished by Respondent to the Board is 6638 W. Ottawa Avenue, Suite 160-2, Littleton, Colorado 80128-4562.
2. Notice of the nature of this proceeding, the legal authority and jurisdiction under which it was held, and the matters of fact and law asserted were mailed to Respondent by first class mail to the address stated above on October 29, 2018.
3. The Board's Notice of Duty to Answer alerted Respondent that failure to respond to the Notice of Charges within 30 days could result in a default decision issued against Respondent's Colorado licensure.
4. No written answer to the Notice of Charges has been filed by Respondent.

5. The Board's Motion for Entry of Default was mailed to Respondent by first class mail to the address stated above on December 11, 2018. Respondent did not file a response to the motion.

6. The Administrative Law Judge's Entry of Default was mailed to Respondent by first class mail to the address stated above on January 9, 2018. The Entry of Default was mailed to Respondent on March 4, 2019 at an additional address provided to the Office of Administrative Courts by the postal authorities. Respondent did not file a Motion to Set Aside Entry of Default.

7. Respondent is deemed to have admitted all allegations in the Notice of Charges, which are incorporated herein as Findings of Fact.

CONCLUSIONS OF LAW

1. Respondent received timely notice of the time, place, and nature of this hearing; of all matters of fact and law asserted; and all matters required by Section 24-4-105(2)(a), C.R.S., in the manner required by that section.

2. The Board has jurisdiction over Respondent and over her license to practice as an LPC.

3. By virtue of Respondent's default, the Board is entitled to the relief requested in the Notice of Charges. See Section 24-4-105(2)(b), C.R.S.

4. The deemed allegations constitute violations of law as set forth in the Notice of Charges.

5. Respondent is subject to discipline pursuant to Sections 12-43-222(1)(b) and 12-43-223(1)(a)(I), C.R.S., because she violated client confidentiality by sending a letter to an individual intended for another client, in violation of Section 12-43-218(1), C.R.S.

6. Respondent is subject to discipline pursuant to Section 12-43-222(1)(p) and 12-43-223(1)(a)(I), C.R.S., because she failed to provide a mandatory disclosure statement to the parents of her minor clients, as required by Section 12-43-214(1), C.R.S.

7. Respondent is subject to discipline pursuant to Sections 12-43-222(1)(x) and 12-43-223(1)(a)(I), C.R.S., because she failed to respond to the complaint in the manner required by the Board and failed to provide the requested documentation to the Board.

8. Respondent is subject to discipline pursuant to Sections 12-43-222(1)(g)(I) and 12-43-223(1)(a)(I), C.R.S., because she violated multiple provisions of the America

Counseling Association's Code of Ethics; failed to provide the parents of her minor clients with a mandatory disclosure statement; sent a letter to an individual intended for another client; failed to respond to a complaint in a manner required by the Board; failed to provide the requested documentation to the Board; failed to verify which parent had decision-making authority prior to beginning therapy with the minor children; and failed to obtain consent prior to treating the minor children, all of which constitutes substandard practice.

INITIAL DECISION

When the Board has proven that a licensee has violated the licensing law, it may deny, revoke, or suspend the licensee's license to practice as an LPC. Section 12-43-223(1)(a)(I), C.R.S. The Board seeks an order revoking Respondent's license to practice as an LPC. Respondent failed to answer the Notice of Charges. There is no information before the Administrative Law Judge indicating that some sanction other than revocation of Respondent's license to practice as an LPC is appropriate in this case. Respondent's failure to appear in this proceeding demonstrates a lack of interest in maintaining her license to practice as an LPC. It is therefore the Initial Decision of the Administrative Law Judge that Respondent's license to practice as an LPC is revoked.

The hearing scheduled in this matter is vacated.

DONE AND SIGNED this __9th__ day of May, 2019.

Matthew E. Norwood
MATTHEW E. NORWOOD
Administrative Law Judge